4.5 Judicial Review, Public Interest Litigation And Judicial Activism

Judicial Review

The Supreme Court and the High Courts in India are entrusted with the power of judicial review, which extends to adjudicating upon the Constitutionality of legislations as well as the legality of executive action.

Parliamentary and State legislations which contravened Constitutional requirements have been struck down by Judiciary.

Judicial review has been extended to review ability of Constitutional amendments by evolving the doctrine of the basic structure of the Constitution according to which a Constitutional amendment which destroys or damages an essential feature of the Constitution, for example secularism, democracy and federalism, would be unconstitutional.

Public Interest Litigation

Any citizen of India can approach the courts for public case (upon the interest of the public) by filing a petition under (a) the Supreme Court by article 32, (b) in the High Court under article 226 and (c) in the magistrate court under section 133 of the CRPC. The guidelines provide that Public interest Litigations can be filed under the following categories: 1. Bonded labour matters, 2. Neglected children, 3. Non- payment of minimum wages, 4. Petitions from jails complaining of harassment, death in jail, speedy trial as a fundamental right etc. 5. Petitions against police for refusing to register a case, harassment of bride, bride burning, rape, murder, kidnapping etc. 6. Petitions complaining harassment or torture of persons belonging to scheduled caste and scheduled tribes. 7. Petitions pertaining to environmental pollution.

The Public interest Litigation jurisdiction forged by the Supreme Court is an extension of its jurisdiction under article 32 of the Constitution. Public interest Litigation is not in the nature of adversary litigation, but it is a challenge and an opportunity to the government and its officers to make such issues as human rights meaningful to the deprived and vulnerable sections of the society and to assure them socio-economic justice which is the signature tune of the Constitution. A Public interest Litigation may be filed against state and central government, municipal authority, but not against any private party.

Recently in India, many cases from the area of Public interest Litigation has come into picture which has been filed in the court of law. As in 2005 a case was decided by the Supreme Court named Common cause society Vs. Union of India. In this Public interest Litigation, the petitioner filed a Public interest Litigation praying to the court to enact a road safety act in view of the numerous road accidents. Secondly, in the Sangammal Pandey Vs. State of UP case the Lucknow bench of the High Court stayed construction activities near Kanshiram memorial up to a specific date.

In the Peoples union for democratic rights Vs. Union of India case, the Supreme Court permitted Public interest Litigations

12th_Political Science_Unit_4.indd 76 1/30/2020 3:16:52 PM